

National Biodiversity Authority: ABS Regulations (Page 1)

1. The Biological Diversity Act 2002 Overview

The Biological Diversity Act 2002 was enacted to conserve biological diversity, promote sustainable use of its components, and ensure fair and equitable sharing of benefits arising out of the utilization of Indian biological resources and associated traditional knowledge. It is administered by the National Biodiversity Authority (NBA) at national level and State Biodiversity Boards (SBB) at state level.

2. Access and Benefit Sharing (ABS) Mechanism

Commercial utilization of biological resources (herbs, roots, microbial strains, seeds collected from India) requires prior intimation to the concerned SBB for Indian entities, or prior approval of NBA for foreign entities/NRIs. The entity must enter into an Access and Benefit Sharing (ABS) agreement, depositing a percentage of annual sales (typically 0.1% to 0.5%) into the National Biodiversity Fund for community conservation.

NBA Approval for Patent Applications (Page 2)

3. Section 6 Mandate: Prior NBA Approval for Patents

Section 6(1) of the Biological Diversity Act mandates that no person shall apply for any intellectual property right, by whatever name called, in or outside India for any invention based on any research or information on a biological resource obtained from India, without obtaining the prior approval of the National Biodiversity Authority (NBA).

4. Form III Application Procedure

Applicants must submit Form III to the NBA along with the patent application details. In the patent specification filed before the Indian Patent Office, the applicant must formally disclose the geographic source and origin of the biological resource used in the invention. Failure to obtain NBA clearance can lead to refusal of patent grant and criminal prosecution under Section 55 of the Act.